

Notes

- ❑ This is not intended to replace the lecture slides but is meant to be a supplemental, to give you another view, and to provide a structured way of thinking about private nuisance and Rylands.
- ❑ The private nuisance slides that follow are based around the model set out by the Supreme Court in *Fearn v Tate*. The idea of 'common and ordinary use' in *Fearn* does not replace the old idea of 'reasonableness'. Instead, it is just describing the same old ideas in different language.

Private Nuisance 1

- i. C can sue if exclusive possession (Hunter)
- ii. Actionable damage if property damage, encroachment, or repeated interference with amenity value (Hunter; Halsey; Williams)
- iii. Substantial interference with C's common and ordinary use of the land? (Fearn)
 - a) Substantial interference: with normal living, not 'dainty modes of living' (Walter) + more than a 'trifling inconvenience' (St Helens Smelting)
 - b) Ordinary use: 'the ordinary use of property for the purposes of residence' not a 'sensitive user' (Robinson; Morris)
- iv. D has a defence if their use is common and ordinary and conveniently (Fearn)
 - a) Locality [but not for property damage] (Sturges; Coventry; St Helen's Smelting)
 - b) Intensity (Kennaway)
 - c) Duration/extent
 - d) *Not* malicious (Christie)

Private Nuisance 2

- v. Normal causation rules
- vi. Normal defences + defence of prescription (Coventry)
- vii. Remedy. Injunction unless Shelfer criteria met:
 - a) Injury to C's rights is small
 - b) Injury is capable of being estimated in money
 - c) Injury can be adequately compensated by a small payment
 - d) Would be oppressive to the defendant to grant an injunction

Rylands (as restated in Transco v Stockport)

- i. D brought onto land an exceptionally dangerous/unnatural thing in unusual circumstances
- ii. The thing escapes from the land
- iii. The thing damages C's land
- iv. Normal causation rules
- v. Defences? – Act of god/volenti